

23AHCV01272 23AHCV01272

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-17

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Case Number: 23AHCV01272 Hearing Date: September 17, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORY and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

Plaintiffs, Scott Marshall-Kimball, and Julie Kimball, as Co-Trustees of the Gail Diann Fromm Family Trust dated November 11, 1980 ("Plaintiffs"), filed this action on June 5, 2023, against Defendants Cheryl L. Cuccia and Layne M. Cosloff, as Trustees of their respective trusts ("Defendants"). On November 22, 2023, Plaintiffs filed their First Amended Complaint, asserting causes of action for partition, accounting, breach of fiduciary duty, and declaratory relief. The dispute arises from the co-ownership of a multi-unit commercial property located at 9331 East Valley Blvd., Rosemead, California ("Subject Property"), where Plaintiffs seek a partition by sale due to irreconcilable differences regarding the management and disposition of the property.

On June 25, 2026, Defendant filed the instant motion to compel a further response to Defendant's Special Interrogatory ("SPROG") and for monetary sanctions. No opposition has been filed.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general

III. ANALYSIS

Defendant moves to compel Plaintiff to provide a further response to SPROGs, Set One, No. 2, and requests monetary sanctions in the amount of \$3,762 against Plaintiff and his counsel of record, Stone & Sallus LLP, jointly and severally. (Notice of Motion, p. 2.)

The motion is unopposed.

Defendant submits a separate statement showing that SPROG No. 2 requests that Plaintiff "SET FORTH all attorney's fees incurred by YOU for the COMMON BENEFIT." "Common benefit" is defined as attorney's fees Plaintiff contends are recoverable as costs of partition under Code of Civil Procedure section 874.010. The interrogatory further defines "set forth" as providing the date the fees were incurred, a description of the attorney work performed, the time spent, the attorney who performed the work, and the attorney's hourly rate. (SS, p. 2.)

Plaintiff responded solely with objections based on the attorney-client privilege and attorney work-product doctrine. Here the Court finds a further response warranted. Plaintiff seeks to recover attorney's fees allegedly incurred for the common benefit in connection with the partition. Thus, the amount and basis of the fees Plaintiff contends are recoverable as costs of partition are directly at issue. Plaintiff may not withhold all responsive fee information merely by asserting the attorney-client privilege and work-product doctrine. To the extent a description of attorney work would disclose privileged communications, attorney impressions, or litigation strategy, such information may be redacted.

Thus, the Court GRANTS Defendant's motion to compel further response to SPROG No.2. Plaintiff to provide further responses within 20 days' notice of this order.

Sanctions

Code of Civil Procedure section 2030.300, subdivision (d), requires the Court to impose monetary sanctions against the party who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds substantial justification or other circumstances make sanctions unjust.

Defendant seeks \$3,762 in monetary sanctions against Plaintiff and his counsel. Defendant argues that Plaintiff's refusal to provide the requested information constitutes a misuse of the discovery process and lacks substantial justification. Defendant's counsel declares that his billing rate is \$495 per hour and that he spent 4.6 hours researching and drafting the motion and anticipated an additional four hours reviewing an opposition, preparing a reply, and attending the hearing. (Niman Decl., ¶ 9.)

Here, the Court finds monetary sanctions warranted. However, because Plaintiff did not file an opposition and Defendant therefore did not file a reply, the Court finds the amount requested excessive. The Court finds two hours at counsel's hourly rate of \$495 reasonable, for a total sanction award of \$990.

Thus, the Court further GRANTS Defendant's request for monetary sanctions in the amount of \$990, payable by Plaintiff and his counsel of record, Stone & Sallus LLP, jointly and severally.

IV. CONCLUSION

The Court GRANTS Defendant's motion to compel a further response to SPROG No. 2. Plaintiff shall provide a further verified response within 30 days of notice of this order.

The Court further GRANTS Defendant's request for monetary sanctions in the amount of \$990, payable by Plaintiff and his counsel of record, Stone & Sallus LLP, jointly and severally within 30 days' notice of this order.

Defendant to give notice.

Dated: September 17, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT